

Court No. - 3

Case :- WRIT - C No. - 15643 of 2016

Petitioner :- Chhotey Lal

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Harikesh

Counsel for Respondent :- C.S.C.,Shivam Yadav

Hon'ble Krishna Murari,J.

Hon'ble Alok Kumar Mukherjee,J.

Heard learned counsel for the petitioner and Sri Shivam Yadav appearing for respondent no. 2.

Petitioner has approached this Court challenging the proceedings initiated by the respondent-Corporation for recovery of its outstanding dues. Petitioner challenges the correctness of the bill for which recovery has been initiated.

Clause 6.5 (b) of the U.P. Electricity Supply Code, 2005 (for short the Code) provides for making a complaint before the competent authority if the consumer disputes the accuracy of the bill.

Since the disputed questions of fact are involved and the petitioner has a remedy, this writ petition stands disposed of with the liberty to the petitioner to make an appropriate complaint before the competent authority in accordance with the provisions of clause 6.5 (b) of the Code within a period of one week from today with the further direction to the authority concerned to consider and pass appropriate orders on the complaint so made in accordance with law within a further period of two weeks of the making of the complaint.

Till disposal of the application/complaint to be made by the petitioner under clause 6.5 of the Electricity Supply Code, 2005, no coercive action shall be taken against the petitioner in pursuance of the impugned recovery citation.

Order Date :- 7.4.2016

Hasnain